

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF NEW YORK

-----X
FRANCISCO FLORENTINO

Plaintiff,

INDEX No.

SUMMONS AND

VERIFIED COMPLAINT

-Against-

DETECTIVES LEANDRO CASTRO SHIELD NO. 2345
ANTHONY GALASSO NO. 1670, ANDREW RAMSARAN
NO. 4004, EDWARD SINCLAIR NO. 5116, EUGENE
POPOVICI, SGT. DOMINICK DISIERVI AND OTHER
DETECTIVES AND POLICE OFFICERS WHOSE' IDENTITIES
ARE UNKNOWN, THE CITY OF NEW YORK AND THE
NYPD.

Defendants,
-----X

To the above named Plaintiff:

Plaintiff designates New York County as the place of trial. The basis of the venue is Plaintiff's residence as well as the place of occurrence. The Plaintiff resides at 2856 8th Avenue Apt-4H, New York, N.Y. 10039.

TO THE ABOVE NAMED RESPONDENT:

YOU ARE HEREBY SUMMONED to answer the within Summons and Complaint in this action and serve a copy of your answer on the Plaintiff's attorney within twenty (20) days after the service of this summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York and in case of your failure to answer, judgement will be take Against you by default for the relief demanded in the annexed complaint together with interest from the date the cause of action arose, costs disbursement, and attorney's fees.

the time of the arrest Mr. Florentino was not in possession of any narcotics and he did not have any of the alleged pre-recorded buy money on him. The area around Mr. Florentino was thoroughly searched with negative results. The undercover detectives, defendants herein, did not see the man with the red shirt interact with any one; thus there was no opportunity for Mr. Florentino, had he been the seller, to get rid of the buy money. In fact, as the police approached a man with a red hat and fitting the general description of the alleged seller, male Hispanic, had walked away and had been pointed out by Mr. Florentino who told Detective LEANDRO CASTRO, the arresting officer, "THAT GUY OVER THERE IS THE GUY YOU ARE LOOKING FOR, NOT ME". At no time prior to the arrest of Mr. Florentino or during the arrest was there any probable cause to arrest him nor did there exist any legally sufficient reason or cause to arrest him, nor could the defendants have reasonably believed that such cause existed. It was objectively unreasonable for the defendants to arrest Mr. Florentino since there was not a scintilla of evidence that he had engaged in a drug sale or that he had engaged in any illegal conduct. In fact, there was no evidence that he had engaged in any suspicious activity at all.

After the illegal arrest, Mr. FLORENTINO was taken to the 34th police precinct, then to Central Booking and eventually was arraigned on the Criminal Court Complaint sworn to by Defendant Leandro Castro, the arresting officer. Said false complaint was based on Castro's alleged observations as well as that of his brother officers' defendants herein, including but not limited to Detective Anthony Galasso. At the arraignment, based on the allegations of the police officers, defendants herein, bail was set at \$50,000.00 bond over \$10,000.00 cash. Mr. Florentino's family could not come up with the bail money and he remained incarcerated for over one year. In all, Mr. Florentino spend approximately 383 days incarcerated as a consequence of the negligence, faulty training, faulty supervision, carelessness, action, inactions, lack of supervision, wanton disregard for the safety of a citizen, malfeasance, lack of training, lack of supervision and otherwise improper acts on the part of the defendants; each and every one of them, including the City of New York.

Mr. Florentino was not only wrongly deprived of his liberty; but he was kept incarcerated at Ryker's Island. There he was assaulted several times, was forced to suffer a place that is drug infected, rat infected, full of the meanest, nasties criminals on the planet, is unsanitary with a constant smell of urine, with lousy food and otherwise unpleasant, hellish place to be at. He had to make approximately 34 court appearances. On those days that he had court, they would wake him up at 4 am, put him for approximately 2 hours in a "bull pen", shackle him hand and feet, put him on a "daisy chain" with other inmates and bring him by bus to 100 Centre Street. At 100 Centre Street he was first taken to a bull pen in the basement, then to another bull pen on the 12 floor and eventually to a holding pen behind the courtroom. He was then presented, handcuffed behind his back, in front of a judge and taken back to the holding pen. While at the holding pen, he was cuffed. After the day was over, he was shackled, placed in a Daisy Chain and taken to the basement to await a bus to his housing unit. Thus he spent most of the court dates cuffed either by himself or to other individuals. He was usually fed a sandwich at approximately one o'clock, thereby spending most of the day without eating. This sandwich consisted of a very thin slice of baloney between two slices of stale bread. He was also given kool-aid or luke warm tea. I should note that there is a toilet in the bull pen which consist of a toilet surrounded on three sides and the side facing the inside of the bull pen being open to view and that Mr. Florentino, like all the other inmates, would have no privacy when relieving himself and using the "bathroom".

Mr. Florentino was indicted after the defendants herein testified in front of a Grand Jury and falsely accused him of selling narcotics to Detective Andrew Ramsaran who was acting in an undercover

capacity as a member of the NYPD. Mr. Florentino plead not guilty and indicated that he was innocent and wanted to go to trial.

Mr. Florentino went to trial and a jury, after hearing all the evidence including Plaintiff's testimony, acquitted him of all charges.

NOTICE OF CLAIM

A notice of claim was filed on August 17, 2015, three days after Plaintiff was acquitted and within 90 days after he was released from prison on this matter. Said notice was filed as soon as the action accrued and this action is being commenced within one year and ninety days from the date the pendent claim herein arose. A 50-H hearing has not been held; but Plaintiff testified at trial and was extraneously and forcefully cross examined by a seasoned Assistant District Attorney. The minutes of the Plaintiff's trial testimony are available for review. The Claim was assigned number 2015PI024369.

FIRST CAUSE OF ACTION FOR FALSE ARREST

The Defendants jointly and individually caused Plaintiff to be falsely arrested in that on or about July 8, 2014 at approximately 3:40 PM, in front of 587 West 177 Street (according to the arresting officers) and/or in front of the public school across the street from said location, Detective Leandro Castro, acting at the direction of his fellow officer, Detective Anthony Galasso, approached Plaintiff, searched Plaintiff and proceeded to arrest Plaintiff. Thereafter Plaintiff was "identified" by Detective Galasso during a "confirmatory" identification procedure, as the alleged seller. Defendant Castro signed a criminal Court Complaint and Plaintiff was arraigned on that complaint. Defendants also created other false and misleading paperwork intended to maliciously prosecute and incarcerate Mr. Florentino. This false paperwork included arrest reports, follow up reports, buy corroboration reports, lab reports and various other police reports. Plaintiff was held incarcerated in lieu of bail. The Defendants testified before the Grand Jury and Plaintiff was indicted and the matter languished in Court for over a year. A trial was held in which the defendants testified and produced evidence and a jury acquitted Plaintiff of all charges. The jury clearly and correctly concluded that there was not probable cause to arrest Mr. Florentino and found him not guilty of any wrongdoing whatsoever. In all, Mr. Florentino spent approximately 383 days incarcerated as a result of Defendants' actions and inactions.

Plaintiff demands and is entitled for compensation for the arrest that was caused by the defendants, each and every one of them, and Plaintiff demands \$20,000,000.00 in damages as fair and just compensation for the 383 days spent in jail as a result of defendants' actions.

SECOND CAUSE OF ACTION FOR MALICIOUS PROSECUTION

Plaintiff repeats, alleges and reiterates the previous paragraphs with the same force and effect as if fully set forth herein.

The act and omissions of the Defendants' caused Plaintiff to be prosecuted in that they falsely accused him of participating in a drug transaction, filed false documents with the knowledge that they were false and would be used to prosecute Mr. Florentino, falsely testified before a Grand Jury and falsely testified before a Petit Jury during trial. All these acts were intended to prosecute the Plaintiff and cause him to be unjustly incarcerated and deprived of his liberty. Mr. Florentino was falsely accused of selling drugs to an undercover detective. The trial testimony clearly indicated that it was more likely than not that he had not been involved in any criminality but had been arrested because he was a male Hispanic wearing a red t-shirt. The officers involved were not properly trained and/or supervised by the Defendant City of New York.

This lack of training and supervision is tantamount to a pattern of practice on the part of the defendants. Several recent court cases and news articles have so indicated and have put the defendants on notice that this is occurring on an almost daily basis.

Mr. Florentino was caused to appear in Court approximately 36 times. He was arrested, fingerprinted, arraigned, indicted and tried before a jury. All this without any wrongdoing on his part. He had to hire counsel and risk his liberty by going to trial. The Jury acquitted him of all charges. We have attached a Certificate of Disposition.

Plaintiff seeks compensation in the amount of \$20,000,000.00.

THIRD CAUSE OF ACTION FOR INFLICTION OF EMOTIONAL DISTRESS

Plaintiff repeats, alleges and reiterates the previous paragraphs with the same force and effect as if fully set forth herein.

Plaintiff was caused to experience mental anguish as he sat in Ryker's Island awaiting his trial. Plaintiff knew that he was innocent of any wrong doing; but had to sit in jail wondering what could happen if a jury believed the falsehoods that were going to be said against and about him by the defendants. The City as employer of the arresting and accusing officers, is liable for their conduct in improperly inflicting mental anguish on Plaintiff. The Defendant City was negligent in its hiring, training and supervision of its employees, including defendants herein. The defendants, each and every one of them, knew or had reason to know that incarcerating an innocent man would cause him great pain, suffering and mental anguish.

Plaintiff seeks compensation in the amount of \$20,000,000.00.

FOURTH CAUSE OF ACTION FAILURE TO TRAIN, SUPERVISE AND NEGLIGENT HIRING

Plaintiff incorporates, alleges, repeats and reiterates each of the previous paragraphs with the same force and effect as if fully set forth herein.

Defendant police officers' actions were part of a pattern, practice, policy and modus operandi of the Police Department of the City of New York and the Defendant City of New York intended to ignore and violate the Constitutional rights of the people they come in contact with and whom they are sworn to serve.

The acts of Defendants City of New York, NYPD, Detectives, UNDERCOVER OFFICERS and Police Officer all defendants herein and the various John and Jane Does were committed under their authority as police officers HIRED BY THE Defendant City, members of the NYPD, vested under and by virtue of the laws of the State of New York, and were, therefore, committed under the color of statute and the laws of the State of New York.

The defendant City knew of the need for additional screening, training, supervision, disciplining and holding accountable of police officers to insure that : (a) they refrain from ignoring evidence that would indicate that an accused is innocent; (b) refrain from misrepresenting, withholding or falsifying evidence; (c) exercising care and thoroughness in the investigation and prosecution of a case involving the alleged possession and sale of narcotics, particularly when none were found and the pre-recorded buy money was also not found; (d) accurately identify and handle exculpatory material, such as the absence of narcotics and pre-recorded buy money.

Through intention and deliberate indifference, the Defendant City failed to adequately provide for screening, training, supervising, and disciplining of police officers with respect to the above mentioned issues. This type of intentional conduct and deliberate indifference is evidenced by news articles, public demonstrations and decisions of the courts of the state of New York reporting that the NYPD and its employees are and have engaged in various acts of misconduct including but not limited to, "testilying", the falsification of evidence, the wrongful withholding of evidence that demonstrate the innocence of individuals accused of crimes, physically and emotionally abusing defendants, Abner Louima and Amadou Diallo, for instance, giving false, incomplete and misleading testimony, and generally failing to act in a reasonable, professional and honest capacity including but not limited to the following decisions:

Riddick v. City of New York, 772 NYS 2d, 294, 4 A.D. 3d 242 (1st Dept. 2004)

Bonefant v. Kelly, 759 NYS 2d 872, 306 A.D. 2d 108 (1st Dept. 2003)

Wagnwe v. Kerik, 748 NYS 2d 860, 298 A.D. 2d 322 (1st Dept. 2002)

Seligson v. Kerik, 744 NYS 2d 655, 295 A.D. 2d 262 (1st Dept. 2002)

Foy v. Safir, 717 NYS 2d 126, 277 A.D. 2d 169 (1ST Dept. 2000)

Titone v. Safir, 717 NYS 2d 22, 277 A.D. 2d 161 (1st Dept. 2000)

Castro v. Safir, 717 NYS 2d 44, 277 A.D. 2d 123 (1st dept. 2000)

Mieles v. Safir, 707 NYS 2d 437,, 272, A.D. 199 (1ST. Dept. 2000)

Sanniti v. Safir, 689 NYS 2d 479, 261 A.D. 2d 153 (1st, Dept. 1999)

Brovakos v. Bratton, 678 NYS 2d 21, 254 A.D. 2d 32 (1st Dept. 1998)

Ranalli v. Safir, 672 NYS 2d 872, 250 A.D. 2d 507 (1st. Dept. 1998)
Vasquez v. Safir, 673 NYS 2d 12, 250 A.D. 2d 448 (1st. Dept. 1998)
People v. Kenrick, 162 Misc. 2d 75, (Crim. N.Y. Cty 1994)
Hickey v. Ward 55 NYS 2d 763, 161 A.D. 2d 495 (1st. Dept.)

Upon information and belief, based on and supported by several newspaper articles, police officers have not been discipline by the Defendant City or defendant NYPD for their misconducts, despite repeated judicial findings that police officers have engaged in misconduct. Such failure constitutes deliberate indifference toward the constitutional rights of the accused and such misconduct constitutes a practice, pattern and custom of engaging in police misconduct including but not limited to withholding exculpatory evidence, filing false complaints and arresting individuals without probable cause to do so, to name a few. The NYPD has created a culture of violence and oppression, particularly in the minority communities, which has been ignored and tacitly approved of by the superiors within the department and those in charge of running and supervising the NYPD and its individual police officers, including the politicians AND City Officials in charge of monitoring the NYPD

By virtue of the decisions referred to above, and other information and court decisions, NYPD and the City knew that the need for adequate training, screening, supervising and disciplining of its employees was, and is, compelling because of the overriding credo of those such as the defendants herein to make arrests and clear cases quickly and at all costs with deliberate and total disregard for the truth, the safety of those arrested and for the constitutional rights of the accused.

The acts, conduct and behavior of the defendants herein were callous, unnecessarily negligent and as such plaintiff was injured and damaged in the sum of ten million dollars.

At all times relevant the Defendants police officers and NYPD were acting WITHIN THE SCOPE OF THEIR EMPLOYMENT AND/OR POLICY MAKER FOR THE CITY OF NEW YORK, WITH THE CONSENT AND KNOWLEDGE OF THEIR SUPERIORS.

To the extend applicable, New York City is liable as respondeat superior for said defendants' actions.

Defendant City of New York knew or should have known of the Police defendants' propensity to engage in illegal, wrongful and negligent acts as detailed above, including but not limited to beating up a helpless civilian who was sleeping on a couch and arresting said civilian without any evidence, probable cause or reason to do so, and the City has failed to correct such wanton police conduct.

Defendant City failed to take adequate steps to discipline, train, supervise or otherwise correct the improper and illegal conduct of said defendants and/or as a matter of policy and practice, has with deliberate indifference failed to take steps to uncover and/or correct such conduct on the part of its police force.

Defendant City of New York has damaged plaintiff by its failure to properly supervise, train, discipline, review, remove, or correct the illegal and improper acts of said defendants and/or as a matter of policy and practice, has with deliberate indifference, failed to take steps to uncover and/or correct such conduct.

The injuries suffered by plaintiff were proximately caused by each and every one of the policies and practices set forth herein, INCLUDING THE USE OF EXCESSIVE FORCE TO ARREST PLAINTIFF.

As recently as three days ago, September 22, 2015, the New York Appellate Division, First Department, revisited the issue of negligent supervision on the part of the NYPD. In the Matter of Gonzalez v. City of New York, 308383/08, decision published in the New York Law Journal on September 23, 2015, the Court stated that "This decision makes it clear that when a police officer is provided with a badge and a weapon, the NYPD is responsible for monitoring the officer". In the matter at hand, plaintiff was arrested by a narcotics team that apparently confused him for another male Hispanic with a red t-shirt. Mr. Florentino, the plaintiff, was arrested and spent 383 days incarcerated as a result of the defendants' actions. Thus, "both the harm that occurred and the person to whom the injury was inflicted were foreseeable within a degree of acceptability recognized by New York law." The officers herein involved have been sued in the recent past for similar conduct, see ADAMES-ABREU et al v. CITY OF NEW YORK, LEANDRO CASTRO, et al, 1983 Civil Action SDNY before Hon. Katherine B. Forrest, 1:15 cv-01838; JOAQUIN RODRIGUEZ V. CITY OF NEW YORK, LEANDRO CASTRO et al, 13 CIV 5785, SDNY, before DANIELS USDJ; JASPER DANIELS V. CITY OF NEW YORK, DET. EDWARD SINCLAIR et al, 1:14 cv 6510, EDNY; JAMEL FLETCHER et al v. CITY OF NEW YORK, Det. EDWARD SINCLAIR et al, 14 cv 3546 EDNY ; JOSEPH LOFTON V. CITY OF NEW YORK, DET. EDWARD SINCLAIR ET AL, 13 CV 5189 EDNY, J. JACK WEINSTEIN, SR USDJ; CLARENCE MARABLE V. CITY OF NEW YORK, DET. EDWARD SINCLAIR ET AL, 09 CV 1589 EDNY; ROBIN NESFIELD ET AL V. THE CITY OF NEW YORK, DET. EDWARD SINCLAIR ET AL, 11 CV 6342, EDNY; EDWARD JOHNSON V. THE CITY OF NEW YORK, DET EDWARD SINCLAIR ET AL, 10-CV-2865 EDNY; LAVERSON LEGRAND V. CITY OF NEW YORK, PO EDWARD SINCLAIR ET AL, 14 CV 0348, EDNY; ANNA DURANT V. CITY OF NEW YORK, DET EDWARD SINCLAIR, JOHN GAMBLE ET AL, 134 CV 1973, EDNY; NYESHA CRONEY V. CITY OF NEW YORK, DET. EDWARD SINCLAIR, JOHN GAMBLE ET AL 12 CV 251, EDNY; DAYLE DE LEON V. CITY OF NEW YORK DET JOHN GAMBLE ET AL 12 CV 257 EDNY; ALISHA BREWSTER V. CITY OF NEW YORK DET EDWARD SINCLAIR, JOHN GAMBLE ET AL 11 CV 4874 EDNY; MICHAEL BOOKER V. CITY OF NEW YORK JOHN GAMBLE, EDWARD SINCLAIR ET AL 12 CV 253 EDNY to name but a few of the cases in which this particular narcotics team has been involved in allegations of false arrests, malicious prosecution and violation of civil rights. The City was, is and should have been on notice that more adequate and proper training and supervision was required. The Defendant City can- not ignore its obligations to the public at large and to Mr. Florentino in particular, who spent over one year incarcerated as a result of the City's negligent behavior.

The actions of the defendants; including the City of New York, resulted in the deprivation of Plaintiff's rights pursuant to the Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution and damaged plaintiff in the sum of \$ 20,000,000.00.

Defendant City of New York, acting through the NYPD, HAD ACTUAL KNOWLEDGE AND/OR DE FACTO POLICIES, practices, customs and/or usages of failing to properly hire, train, supervise or discipline its police officers concerning correct practices in conducting investigations, such as herein, the use of force, interviewing on witnesses and informants or undercover narcotics detectives, assessment of the credibility of witnesses such as undercover narcotics detectives, reasonable search of individuals and/or their property, the seizure, voucher, and/or release of seized property, obligation not to promote or condone perjury, and/or assist in the prosecution of innocent individuals and obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons and the obligation to effect an arrest only when the probable cause exist for such an arrest.

Additionally, Defendant City of New York, acting through District Attorney Cyrus Vance and the Office of the New York County DISTRICT ATTORNEY had actual and/or de facto notice of the policies, customs and/or usages of failing to properly train, supervise, and discipline concerning its employees in conducting investigations, interviewing witnesses, including detectives, assessing the credibility of witnesses, again including detectives, the initiation and prosecution of criminal actions, obligation not to encourage, promote or condone perjury and/or assist in the prosecution of innocent individuals plus the obligation of candor towards the court.

Upon information and belief, Defendant City of New York, through various agencies and departments, including the defendants herein, owed a duty of care to Mr. Florentino to prevent the physical and mental abuse sustained by him as a direct consequence of defendants' combined actions. The Defendant City owed a duty of care to plaintiff because under the same or similar circumstances a reasonable, prudent and careful person should have anticipated that an injury to plaintiff or to those similarly situated would probably result from conduct such as that described here and engaged in by defendants, agents of the City.

Upon information and belief, Defendant City of NY, knew or should have known through the exercise of reasonable diligence and care that defendant officers were not prudent and were potentially dangerous.

Upon information and belief, Defendant City of NY negligence in hiring and retaining defendants proximately caused plaintiff's injuries and because of the City's negligence in hiring and retaining defendant officers, plaintiff incurred and sustained significant and lasting injuries.

Defendant City of New York acting through the NY District Attorney's Office and its Narcotics Prosecutor's Office had actual and/or de facto knowledge of the policies, practices, customs and/or usages of failing to properly train, supervise and discipline its employees to prevent the usages of wrongfully arresting, illegally stripping, maliciously prosecuting, abusing, causing pain and suffering, inflicting distress, humiliating, degrading and taking advantage of individuals who are members of racial/ethnic minority groups and sometimes don't even speak English, such as plaintiff, who is a dark skinned Dominican male, on the pretext that they were involved in narcotics and/or drug transactions.

The existence of the aforesaid unjust, illegal and unconstitutional practices, policies, customs, and/or usages may be inferred from repeated occurrences of similar wrongful conduct, as documented in the numerous civil rights actions filed against the City of NY in both the State and Federal Courts, and from a January 2006 statement by Deputy Commissioner Paul J. Browne that police commanders are permitted to set "productivity goals", or arrest quotas, please see *Colon v. City of NY* 2009 U.S. Dist. LEXIS 110520 (E.D.N.Y. Nov. 25, 2009) (Weinstein J.) *Allisha Brewster v. City of NY* (11 Civ4874) and *Geneeza*

Walls v. City of NY, (10 Civ. 5769) among others. The issue of arrest quotas has been decided and it has been conclusively determined that officers of the NYPD are permitted, as a policy and/or practice to use quotas to make arrests. See Bryant v. City of NY, Index Number 22011/07, Supreme Court Kings County Feb. 18, 2011.

The defendant City of NY maintained the above described policies, practices, customs or usages knowing fully well that the policies, practices, customs or usages lead to improper conduct by its police officers and employees. In failing to take any corrective actions, Defendant City of NY ACTED WITH DELIBERATE INDIFFERENCE, and its failure was a direct and proximate cause of plaintiff's injuries as described herein.

The actions of defendants, acting under color of State law, deprived plaintiff of his liberty, his due process rights and rights, remedies, privileges, and immunities under the laws and Constitutions of the State of New York and the United States, treatises, ordinances, customary international law and norms, customs and usage of a right; in particular, the right to be secure in his person and property, to be free from abuse of process, to be free from deprivation of his liberty and the right to due process.

By these actions defendants have deprived plaintiff of rights secured by common law, New York State Law, Federal Law, custom and usage of a right and the 4th, 5th, 6th and 14th Amendments to the US Constitution and the Constitution of the State of New York.

Plaintiff demands \$20,000,000.00 in damages for this violation.

FIFTH CAUSE OF ACTION ASSAULT AND BATTERY

By this reference, plaintiff incorporates each and every allegation and averment set forth in the preceding paragraphs.

The conduct of the defendant officers as described herein, including handcuffing plaintiff, amounted to an assault and battery. By reason of and as a result and consequence of the assault, plaintiff suffered and continues to suffer emotional distress, embarrassment, fear,, humiliation, shock, discomfort, loss of liberty, pain, suffering and damage to reputation.

Upon information and belief, Defendant City of NY had sufficiently specific knowledge or notice of defendant officers' propensity for acts complained of herein and that their acts could reasonably have been foreseen or anticipated.

However, Defendant City of NY failed to take any steps or any appropriate actions to assure plaintiff's safety and security and failed to protect and safeguard plaintiff's interest. Therefore, the defendant's City failure to safeguard and assure Mr. Florentino's safety and security was a proximate cause of plaintiff's injuries.

Plaintiff demands \$20,000,000.00 for this violation.

SIXTH CAUSE OF ACTION NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

By this reference plaintiff incorporates each and every allegation and averment set forth in the preceding paragraphs as though fully set forth herein.

As set forth above, defendants engaged in seriously and extreme outrageous conduct, intentionally and recklessly causing severe emotional distress to plaintiff. Plaintiff's has damaged his personal life due to the severe mental pain and anguish which were inflicted through deliberate and malicious actions including the detention and imprisonment of plaintiff by the defendants. Plaintiff was caused to spend 383 days locked-up in Ryker's Island a rat infected, urine smelling hell hole, FULL OF DANGEROUS AND SOMETIMES DERANGED INDIVIDUALS. A place that is known for its violent nature and the culture of violence that it has created, propagated and maintained. This culture of violence is propagated, perpetuated and engendered by the acts of the defendants herein, in that they arrest innocent individuals and feed them to the wolves on Ryker's Island.

Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

Plaintiff demands \$20,000,000.00 as compensation for these damages.

SEVENTH CAUSE OF ACTION PAIN AND SUFFERING

By this reference Plaintiff incorporates each and every one of the preceding paragraphs as if re-alleged herein.

Plaintiff sustained substantial pain and was made to suffer because of the acts of the Defendants.

While wrongfully and unjustly incarcerated at Ryker's Island, Plaintiff was assaulted several times. Plaintiff was punched, kicked and stabbed while in Ryker's. In addition, Plaintiff was placed in solitary confinement for over thirty days. Needless to say, this, in addition to all the above mentioned caused Plaintiff great pain and suffering.

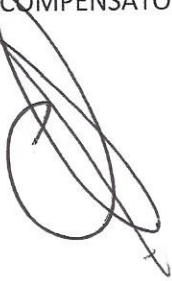
Plaintiff demands \$20,000,000.00 as fair and just compensation for his pain and suffering.

WHEREFOR, PLAINTIFF, FRANCISCO FLORENTINO, demands compensation as follows:

1. FALSE ARREST \$20,000,000.00
2. MALICIOUS PROSECUTION \$20,000,000.00
3. INFLICTION OF MENTAL DISTRESS \$20,000,000.00
4. ASSAULT AND BATTERY \$20,000,000.00
5. INFLICTION OF EMOTIONAL DISTRESS \$20,000,000.00
6. PAIN AND SUFFERING \$20,000,000.00
7. CIVIL RIGHTS VIOLATION \$20,000,000.00

8. FAILURE TO PROTECT \$20,000,000.00
9. DEPRIVATION OF LIBERTY \$20,000,000.00
10. NEGLIGENT HIRING AND RETAINING \$20,000,000.00

PLUS COMPENSATORY AND PUNITIVE DAMAGES.

A handwritten signature in black ink, consisting of several overlapping loops and a final downward stroke.

ANDRES MANUEL ARANDA

ATTORNEY FOR PLAINTIFF

930 GRAND CONCOURSE, SUITE 1A

BRONX, N.Y. 10451

1-718-590-1904

amarandawill.c.u@gmail.com

Bronx, N.Y.

September 1, 2015

I, Francisco Florentino, have read the attached Summons and Complaint and believe the facts contained therein to be true to the best of my recollection.

X Francisco Florentino
FRANCISCO FLORENTINO

BRONX, NY.

SWORN to before me *oath*
This *Sept*, day of
September, 2015



Sworn to before me
On this *09* day of *Sept*, 2015
MARIA TEJADA
Notary Public, State of New York
No. 61TE6089101
Qualified in New York County
Commission Expires March 17, 20 *19*

In the Matter of the Claim of

FRANCISCO FLORENTINO

NOTICE OF CLAIM

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICERS
WHOSE IDENTITIES ARE UNKNOWN AND
DETECTIVES LEANDRO CASTRO NO. 2345, ANTHONY
GALASSO NO. 1670, EDWARD SINCLAIR NO.
EUGENE POPOVICI NO.
ABISAG RIVERA
ANDREW RAMSARAN SHIELD NO. 4005
AND SGT. DOMINICK DESIERVI.

BRONX, NEW YORK:

TO THE CORPORATION COUNSEL OF THE CITY OF NEW YORK

PLEASE TAKE NOTICE THAT the claimant herein hereby makes claim and demands against you as follows:

The name and post office address of the claimant and its attorney is:

Claimant: FRANCISCO FLORENTINO Claimant's Attorney: ANDRES M. ARANDA

FRANCISCO FLORENTINO

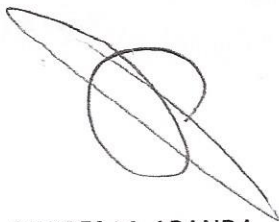
Andres M. Aranda

930 Grand Concourse, Suite 1A

Bronx, N.Y. 10451

THE NATURE OF THE CLAIM IS: FALSE ARREST, MALICIOUS PROSECUTION, DEPRIVATION OF LIBERTY,
UNLAWFUL DETENTION, INFLICTION OF MENTAL DISTRESS, NEGLIGENCE, IMPROPER TRAINING,
IMPROPER SUPERVISION, LACK OF SUPERVISION, LACK OF TRAINING, CAUSING PHYSICAL PAIN,
SUFFERING AND ASSAULT.

RECEIVED
CITY OF NEW YORK
2015 AUG 17 AM 11:12
CENTRAL RECORDS SECTION
BUR. INFORMATION SYSTEM



ANDRES M. ARANDA

ATTORNEY FOR FRANCISCO FLORENTINO

930 GRAND CONCOURSE, SUITE 1A

BRONX, NEW YORK 10451

I, Francisco Florentino, am the claimant in the above entitled action. I have read the foregoing notice of claim and deem it to be true.

Francisco Florentino
FRANCISCO FLORENTINO
8-15-15



Learn more about eligibility for
public
benefits, programs and tax credits.

Inmate Details

FLORENTINO, FRANCISCO		Booking Information	Incarceration 11-AUG-2015
NYSID:	12412991L	Book & Case Number:	3101500698
Year of Birth:	1986	Arrest Date:	11-AUG-2015
Sex:	Male	Arrest Number:	COURT DIRECT
Race:	Other	Actual Release Date:	14-AUG-2015
Height:	5 ft 7 inches	Discharge Reason:	Released
Weight:	123 lbs		
Hair Color:	Black		
Eye Color:	Brown		
Nativity:	Dominican Republic		

Inmates released over 30 days ago will not be displayed.

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New York State Unified Court System

WebCrims

Case Details - Appearances

CASE INFORMATION

Court: **New York Supreme Court - Criminal Term**
 Case #: **03128N-2014**
 Defendant: **Florentino, Francisco**

Date/ Part	Judge	Calendar Section	Arrangement/ Hearing Type	Court Reporter	Outcome/ Release Status
08/19/2015 75	Clott, A	ON TRIAL	Trial Begins		
08/18/2015 75	Clott, A	ON TRIAL	Trial Begins		
08/17/2015 75	Clott, A	ON TRIAL	Trial Begins		
08/14/2015 75	Clott, A	ON TRIAL	Trial Begins		
08/13/2015 75	Clott, A	ON TRIAL	No Type	Pacheco, Y	Trial Continued Released on Recognizance
08/12/2015 75	Clott, A	TRIALS AM	Trial Begins	Pacheco, Y	Trial Continued Released on Recognizance
08/11/2015 75	Clott, A	TRIALS AM	No Type		Trial Continued
08/10/2015 23	Ross, N	TRIALS AM	No Type	Clott, A Pacheco, Yvette	Adjourned Released on Recognizance
07/28/2015 23	Ross, N	TRIALS AM	No Type	Pacheco, Yvette	Adjourned Released on Recognizance
07/22/2015 23	Ross, N	TRIALS AM	No Type	Pacheco,	Adjourned Released on Recognizance
07/21/2015 23	Ross, N	TRIALS AM	No Type	Pacheco, Yvette	Adjourned Released on Recognizance
07/14/2015 23	Ross, N	TRIALS AM	No Type	Davidson, Claudine	Adjourned Same Bail Conditions
07/09/2015 23	Ross, N	TRIALS AM	No Type	Bell-siano, S	Adjourned Same Bail Conditions
07/08/2015 23	Ross, N	TRIALS AM	No Type	Bell Siano, S	Adjourned Same Bail Conditions
07/01/2015 23	Ross, N	TRIALS AM	No Type	Davidson, Claudine	Adjourned Same Bail Conditions
06/30/2015 23	Ross, N	TRIALS AM	No Type	Davidson, Claudine	Adjourned Same Bail Conditions
06/22/2015 23	Ross, N	TRIALS AM	No Type	Davidson, C	Adjourned Same Bail Conditions
05/26/2015 23	Ross, N	TRIALS AM	No Type	Maxey, S	Adjourned Same Bail Conditions
05/11/2015 23	Ross, N	TRIALS AM	No Type	Fleming, J	Adjourned Same Bail Conditions
04/20/2015	Ross, N	TRIALS AM	No Type	Maxey, Sarah	Adjourned

New York State Unified Court System

WebCrims

Case Details - Charges

CASE INFORMATION

Court: **New York Supreme Court - Criminal Term**
Case #: **03128N-2014**
Defendant: **Florentino, Francisco**

Charge	Detail	Disposition/Sentence
PL 220.39 01 **TOP CHARGE**	B Felony, 1 count, Arrest charge, Arraignment charge Description: <i>Cscs-3rd:narcotic Drug</i> Indictment Count: <i>1</i> Weapon/Drug: <i>Cocaine</i>	



THE CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
CLAIMS AND ADJUDICATIONS
1 CENTRE STREET ROOM 1200
NEW YORK, N.Y. 10007-2341

WWW.COMPTROLLER.NYC.GOV

015 - 151

Scott M. Stringer
COMPTROLLER

Date: 08/27/2015
Claim No: 2015PI024369
RE: Acknowledgment of Claim

FLORENTINO FLORENTINO c/o ANDRES MANUEL ARANDA
930 GRAND CONCOURSE SUITE 1A
BRONX, NY 10451

Dear Claimant:

We acknowledge receipt of your claim, which has been assigned the claim number shown above. Please refer to this claim number in any correspondence or inquiry you may have with our office.

We will do our best to investigate and, if possible, settle your claim. However, if we are unable to resolve your claim, **any lawsuit against the City must be started within one year and ninety days from the date of the occurrence.**

If you have any questions regarding your claim, you may contact us at either 212-669-8750 for property damage claims, or 212-669-4426 for claims involving personal injury.

Sincerely,

Bureau of Law & Adjustment

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY
100 CENTRE STREET
NEW YORK, NY 10013

FEE:\$10.00

CERTIFICATE OF DISPOSITION ACQUITTAL

DATE: 08/31/2015

CERTIFICATE OF DISPOSITION NUMBER: 51876

PEOPLE OF THE STATE OF NEW YORK
VS.

FLORENTINO, FRANCISCO

DEFENDANT

CASE NUMBER: 03128N-2014
LOWER COURT NUMBER(S): 2014NY052995
DATE OF ARREST: 07/08/2014
ARREST #: M14660627
DATE OF BIRTH: 02/02/1986
DATE FILED: 07/21/2014

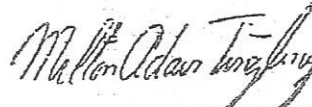
I HEREBY CERTIFY THAT IT APPEARS FROM AN EXAMINATION OF THE RECORDS ON FILE IN THIS OFFICE THAT ON 08/14/2015 THE ABOVE NAMED DEFENDANT WAS TRIED AND FOUND NOT GUILTY OF ALL PENDING CRIMINAL CHARGES AS TO THIS CRIMINAL ACTION BEFORE THE HONORABLE CLOTT, A THEN A JUDGE OF THIS COURT.

THE DEFENDANT WAS DISCHARGED FROM THE JURISDICTION OF THE COURT.

THE ABOVE MENTIONED ACQUITTAL IS A TERMINATION OF THE CRIMINAL ACTION IN FAVOR OF THE ACCUSED AND PURSUANT TO SECTION 160.60 OF THE CRIMINAL PROCEDURE LAW "THE ARREST AND PROSECUTION SHALL BE DEEMED A NULLITY AND THE ACCUSED SHALL BE RESTORED, IN CONTEMPLATION OF LAW, TO THE STATUS OCCUPIED BEFORE THE ARREST AND PROSECUTION".

PURSUANT TO SECTION 160.50(1C) OF THE CRIMINAL PROCEDURE LAW, ALL OFFICIAL RECORDS AND PAPERS RELATING TO THIS CASE ARE SEALED.

IN WITNESS WHEREOF, I HAVE HEREUNTO SET MY HAND AND AFFIXED MY OFFICIAL SEAL ON THIS DATE 08/31/2015.



COURT CLERK